

Murari Lal v. Regional Appellate Committee/Supdt. Engg./D.G.M. & Others

High Court of Judicature at Allahabad · Single Judge · 19 November 2018 · Writ - C No. 46844 of 2007 · **Writ partly allowed; penalty-adjustment claim remitted; recovery stayed**

HEADNOTE

After criminal acquittal, the U.P. Electricity Supply Code, 2005 lets the consumer seek adjustment of an assessed amount or penalty said to be calculated on the higher side. Without deciding merits, the Court partly allowed the writ, directed respondent no.3 to decide that claim by 31 March 2019, and directed that recovery not be pressed until then. Prayer no.3 was not pressed.

FACTUAL SUMMARY

Murari Lal petitioned the Allahabad High Court in 2007 against the Regional Appellate Committee, Superintending Engineer/DGM and other electricity authorities over an assessed amount or penalty. After pass-overs on counsel's illness and a missing supplementary affidavit of 11 December 2017, the writ was heard on 19 November 2018. Counsel for the Corporation stated it was then undisputed that criminal proceedings against the petitioner had ended in his acquittal. What remained was a claim that the assessment or penalty had been calculated on the higher side. Prayer no.3 was not pressed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

adjustment of assessment after acquittal

HOLDING

On the parties' consensus and without examining merits, the Court recorded that after the petitioner's criminal acquittal, the U.P. Electricity Supply Code, 2005 permits him to approach the concerned authority and claim adjustment of the assessed amount or penalty by showing the calculation was on the higher side. Respondent no.3 was directed to decide that claim on or before 31 March 2019, taking subsequent developments on record; recovery was not to be pressed until that decision. The writ was partly allowed. Prayer no.3 was not pressed. ¶ 4

FLAG Order invokes U.P. Electricity Supply Code, 2005 generally; no clause number is given.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ASSESSMENT OR PENALTY

Court expressly declined to go into merits and remitted the adjustment claim to respondent no.3. ¶ 4

NOT DECIDED — PRAYER NO.3

Not pressed; the order does not record what that prayer was. ¶ 4